movement were singing “We Shall Overcome.” I marveled that in a moment of such tragedy the Negro could still express himself with hope and with faith.

The following evening, a thoroughly aroused President told the nation that the federal government would not allow extremists to sabotage a fair and just pact. He ordered three thousand federal troops into position near Birmingham and made preparations to federalize the Alabama National Guard. This firm action stopped the troublemakers in their tracks.

Yet the segregationist diehards were to attempt still once more to destroy the peace. On May 20, the headlines announced that more than a thousand students who had participated in the demonstrations had been either suspended or expelled by the city’s Board of Education. I was convinced that this was another attempt to drive the Negro community to an unwise and impulsive move. The plot might have worked; there were some people in our ranks who sincerely felt that, in retaliation, all the students of Birmingham should stay out of school and that demonstrations should be resumed.

I was out of the city at the time, but I rushed back to Birmingham to persuade the leaders that we must not fall into the trap. We decided to take the issue into the courts and did so, through the auspices of the NAACP Legal Defense and Educational Fund. On May 22, the local federal district court judge upheld the Birmingham Board of Education. But that same day, Judge Elbert P. Tuttle, of the Fifth Circuit Court of Appeals, not only reversed the decision of the district judge but strongly condemned the Board of Education for its action. In a time when the nation was trying to solve the problem of school dropouts, Judge Tuttle’s ruling indicated, it was an act of irresponsibility to drive those youngsters from school in retaliation for having engaged in a legally permissible action to achieve their constitutional rights. The night this ruling was handed down, we had a great mass meeting. It was a jubilant moment, another victory in the titanic struggle.

The following day, in an appropriate postscript, the Alabama Supreme Court ruled Eugene “Bull” Connor and his fellow commissioners out of office, once and for all.